

Once again, the entire factual premise of the Medrano's basis to set aside default is that they observed a man dropping off papers by their front door, and the proof of service stating it was given to someone who did not fit Cheryl A. Medrano's description. (Cheryl A. Medrano's Decl., ¶¶1-6; Michael Medrano's Decl., ¶¶1-6.) The Medrano's declarations entirely fail to demonstrate "mistake, inadvertence, surprise, or excusable neglect," as they do not explain how defendants reasonably ignored a summons and complaint left on their doorstep.

Finally, defendants seek relief under Code of Civil Procedure section 473, subdivision (d) arguing that "[t]he [default] judgement is void under California Code of Civil Procedure section 473(d). Service of summons must be made by personal delivery pursuant to CCP §415.10. Where service is not properly effected, the court lacks personal jurisdiction, and any resulting default judgment is void under CCP §473(d)." (Moving Papers, pg. 3:7-12.)

However, not only do the moving papers fail to articulate how the service was void, this Court has already ruled on this particular issue, when this Court denied the Medrano's Motion to Quash Service of Summons, on November 20, 2025. (Linder Decl., Ex. F.)

Accordingly, the Medrano's motion to set aside default is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on 6/10/2026.
(Judge's initials) (Date)

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Tentative Ruling

Re: **Sweeney v. C.K. Automotive, Inc., et al**
Superior Court Case No. 24CECG05397

Hearing Date: June 11, 2026 (Dept. 501)

Motion: by Plaintiff to Compel Kia America, Inc. to Appear and Testify
at Deposition

**If oral argument is timely requested, it will be entertained on
Thursday, June 18, 2026, at 3:30 p.m. in Department 403.**

Tentative Ruling:

To take the motion off calendar due to the moving party's failure to comply with Fresno Superior Court Local Rules, Rule 2.1.17.

Explanation:

Plaintiff Jeffrey Sweeney ("Plaintiff") moves to compel the deposition of Kia America, Inc.'s ("Defendant") Person Most Qualified.

Fresno Superior Court Local Rules, Rule 2.1.17 states in pertinent part:

No motion under sections 2017.010 through 2036.050, inclusive, of the California Code of Civil Procedure shall be heard in a civil unlimited case unless the moving party has first requested an informal Pretrial Discovery Conference with the Court and such request has either been denied and permission to file the motion is granted via court order or the discovery dispute has not been resolved as a result of the Conference and permission to file the motion is expressly granted.

Plaintiff brings this motion under Code of Civil Procedure section 2025.450. Fresno Superior Court Local Rules, Rule 2.1.17 is clear. Plaintiff did not file a request for a Pretrial Discovery Conference and Plaintiff did not receive permission to file the current motion. Accordingly, Plaintiff's motion to compel Defendant to appear and testify at deposition is taken off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** 6/10/2026.
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